

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-018
Amendments to Title 5, Chapter 2 of the Chickasaw Nation Code
(Prosecutor and Court Appointed Counsel)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has established rules and procedures for the Chickasaw Nation District Court, and

WHEREAS, the Chickasaw Tribal Legislature desires to provide for a prosecutor and court appointed counsel in certain situations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following additional sections to Title 5, Chapter 2 of the Chickasaw Nation Code:

**“SECTION 5-202.35 CRIMINAL ACTIONS; COURT-APPOINTED COUNSEL;
ATTORNEY FEES.**

A. In a criminal action, if an indigent defendant requests court-appointed counsel in accordance with Section 5-501.4, the Court must assign counsel to represent the defendant.

B. A court-appointed attorney shall represent the defendant until final disposition of the criminal action and shall receive compensation, payable from a fund established expressly for the purpose of paying court-appointed counsel, in an amount set by the Court, not to exceed seventy five dollars (\$75) per hour up to five hundred dollars (\$500) maximum per case, absent prior approval of the Court.

**SECTION 5-202.36 CIVIL ACTIONS INVOLVING CHILDREN; COURT
APPOINTED COUNSEL; ATTORNEY FEES.**

A. In civil actions involving children, the Court may appoint counsel, upon motion or *sua sponte*, in any capacity as determined by the Court. The court-appointed attorney shall provide services as assigned by the Court until he is discharged from that duty.

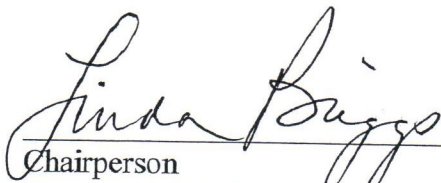
B. Court-appointed counsel in civil actions shall receive compensation, payable from a fund established expressly for the purpose of paying court-appointed counsel, in an amount set by the Court, not to exceed seventy five dollars (\$75) per hour up to five hundred dollars (\$500) maximum per case, absent prior approval of the Court.

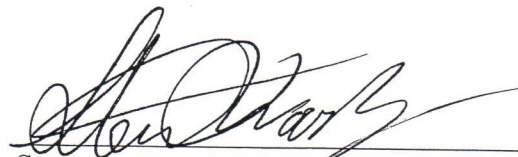
SECTION 5-202.37

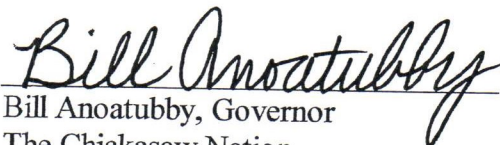
OFFICE OF PROSECUTOR.

There is hereby created the office of prosecutor for the Chickasaw Nation. The prosecutor shall be an employee of the Chickasaw Nation Executive Department who is a member of the Chickasaw Bar Association during his term of office. Performance evaluations shall be provided by the Court to the Governor or his designee in accordance with the then-existing rules and regulations or as requested by the Governor or his designee."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2004, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 21 2004

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Explanation: This resolution provides for a prosecutor and for court-appointed counsel in both criminal and civil cases in the District Court of the Chickasaw Nation.

Requested By: Tim Colbert, Chairman
Court development Committee

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Court development Committee